THE REPUBLIC OF CORTESIA DEL MAR
SUPREME COURT

EX PARTE

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CASE DETAILS

CASE NUMBER: 9

COURT: yodabird19 AJ, CommradePotatoe AJ and Brick_WallGaming AJ

DATE: 29 October 2025 (GMT)

JUDGMENT

JUDGMENT OF THE COURT: yodabird19 AJ (joined by CommradePotatoe AJ and Brick_WallGaming AJ), paras [1] — [64]

ACTING JUSTICE YODABIRD19 delivered the judgment of the Court, in which ACTING JUSTICE COMMRADEPOTATOE and ACTING JUSTICE BRICK_WALLGAMING joined.

I. Introduction

> "The right of suffrage is a fundamental Article in Republican Constitutions. The regulation of it is, at the same time, a task of peculiar delicacy."
> — James Madison, *Note to His Speech on the Right of Suffrage*, 1821.

[1] In this matter, the Chief Justice approaches the Court to rule on the validity of four ballots cast in the October 2025 Presidential Election.

[2] In accordance with Section 85(16) of the Constitution of Cortesia Del Mar, the Chief Justice is responsible for overseeing voting in Presidential elections. In this particular election, this duty has been rendered via directly receiving ballot submissions for subsequent anonymous tally.

[3] The Chief Justice has argued that the four ballots identified in his application are invalid on two grounds: firstly, that the individuals who cast them were not valid citizens; secondly, that the ballots constitute a "coordinated effort to influence the election".

[4] The Supreme Court has decided to hear this case on direct access. In Section IV, we will deliver reasoning for granting this access; in sections V and VI, we will address the questions of the case.

II. Background

[5] The October 2025 Presidential Election consists of three tickets, listed below in order of registration, with the Presidential candidate named first:

a) Savster123_25 and ItsAlreadyGold

b) Astralchroma and Peregri

c) AlzuCats and Willow805

[6] As more than two tickets were registered for the election, the procedure for single-winner instant-runoff voting was called for, in accordance with Section 85(16)(b)(ii) of the Constitution. However, in the absence of an effective automated solution to conduct such voting in compliance with

the Constitution, the Chief Justice ordered ballots to be submitted via personal DM. To quote Interior Minister yodabird19, on the evening before the election: “we could just have people DM you [IceCarim] ballots…I think that would be constitutionally justifiable, if pretty clumsy”.

[7] This scenario provided a unique opportunity for the Chief Justice to observe the voting patterns of Cortesian Citizens. It is on the basis of information obtained in this manner that he has approached the Court.

[8] Public statements made by the Chief Justice prior to bringing the case indicated that the Court’s decision might be decisive on the outcome of the October 2025 Presidential Election; following a request by the Court for disclosure of ballot data, it has been confirmed that no decision of the Court with regard to the four contested ballots could have altered the outcome of the election. The Court, via ACTING JUSTICE COMMRADEPOTATOE, has issued an interlocutory order declaring the winner of the election.

[9] This fact in no way diminishes or alters the due consideration of the Court.

III. Private Evidence

[10] The identities of the four voters concerned by this case, which constitutes relevant information for the Court’s decision, cannot be disclosed publicly, per Section 85(16)(c)(i) of the Constitution, which stipulates that voting in a Presidential election “must be conducted by secret ballot”.

[11] As a consequence, the Court in this case has received several *in camera* submissions of evidence, as well as testimony and argumentation dependent on specific details of that evidence. As this is only the second Cortesian court case to deal with private evidence (with the first being *Cortesia Del Mar v. TheWinningSmiler*, in which the confidential evidence served solely to corroborate public testimony), this places the Court in the position of establishing precedent for the handling of private evidence.

[12] In order to maximize voter privacy whilst still effecting its orders, the Court will adhere to the need-to-know principle with regard to private information; the public version of this document will have private

information redacted, while an uncensored version will be made available exclusively to the present Chief Justice and the newly-elected President and Vice President.

IV. Direct Access

[13] Chief Justice IceCarim called upon the Supreme Court to hear this matter directly. The Supreme Court is permitted to do so, per Section 106(4)(a)(ii), "if this is in the interests of justice".

[14] IceCarim contends that it indeed is, stating that "an anxious nation awaits the results of the presidential election. Direct access should be granted so that the election can be decided expeditiously."

[15] The Court agrees whole-heartedly with this assessment, and appends an additional reason to grant direct access: the subject matter of this case is such that the Court's ruling will decide important questions regarding the very heart of the nation, our democratic process. Considering this exceptional importance, none less than the most exhaustive consideration that the Cortesian Judiciary can provide is appropriate.

[16] Consequently, direct access is granted.

V. The activity question – Were the concerned individuals valid citizens as of the election?

[17] The Chief Justice contends that the concerned individuals were not valid citizens as of the beginning of the Presidential Election on October 18th, 2025, owing to Sections 4(2)(a) and 4(3) of the Citizenship Act, which provide respectively that:

> At the beginning of each month, the Minister of the Interior must inform the Cabinet if there are any citizens that have been absent from the Republic for over 30 days.
>
> If there are any individuals that meet the qualification laid out in Subsection (2)(a), that individual loses citizenship, unless they have provided notice of their absence.

A. Can citizenship be lost automatically?

[18] The concerned individuals were all marked as citizens on the Cortesia Del Mar Discord server (an auxiliary apparatus of the Republic, conduct within which "is for all purposes conduct in the Republic" per Section 150(2) of the Constitution) as of October 18th. Thus, before any consideration may be given as to whether the concerned individuals had invalid citizenship on account of these provisions and despite their recognition by the government as citizens, we must first ask: is that even possible?

[19] The Chief Justice submits as much: "Th[e] loss of citizenship is automatic...An individual's loss of citizenship is not dependent on the Minister of the Interior informing the Cabinet that they have been absent from the Republic for over 30 days. That appears to be an advisory function. It is instead dependent on their being absent from the Republic for over 30 days".

[20] The Court concurs entirely. The Citizenship Act is not ambiguous that the criterion in Section 4(2)(a) is self-executing: Section 4(3) states positively that "if there are any individuals that meet the qualification laid out in Subsection (2)(a), that individual loses citizenship" – no agency is given to the government in this matter.

[21] However, the Court does not establish this precedent without trepidation: ACTING JUSTICE COMMRADEPOTATOE raised the concern during argumentation that the ruling in Paragraph [20] may "introduce a dangerous precedent where people question the validity of citizenship at any given vote". This concern has merit.

[22] To ameliorate this concern, the Court implores the Cabinet to establish a routine of executing upon such automatic lapses in citizenship, in particular prior to every major vote. It is only on the contention of a failure on the part of the national executive to perform this duty that a case such as this one may have merit.

B. Heuristic for "absence"

[23] As the Court has opened the door to finding some or all of the concerned individuals to have been absent, we must now develop a heuristic by which to do so. But how to do it?

[24] President oko submits the following: "activity in the community and activity in the nation are not one in the same. A healthy citizenry has an apathetic bloc that may handle clerical or productivity activity, live their private lives, and occasionally vote. I do not believe it would require the citizen to actively engage with our Discord or CivMC instance" (with corrected grammar).

[25] The President's supposition is in conflict with established precedent. The Court in *star_litty v. National Forum* ruled that "those who are not active enough in the Nation to be citizens can still play some role and enjoy some benefit from being in Cortesia by being permanent residents". The absence heuristic cannot be null; insufficient activity must result in a demotion to residency.

[26] Nevertheless, the suggestion that the Court should adopt a very limited standard for absence carries weight. Section 4(5) of the Citizenship Act provides an alternative criterion for the revocation of citizenship which is *not* self-executing:

> The Cabinet may revoke an individual's citizenship, but only after determining that the individual—
>
> > is not primarily or habitually associated with Cortesia Del Mar; and
> >
> > has not consistently participated in the Nation as a citizen.

[27] In accordance with the canon against surplusages, we must assume that the scopes of these criteria are not coterminous; furthermore, as Section 4(2)(a) is self-executing while Section 4(5) is not, in order not to reduce

Section 4(5) to redundancy we must assume that Section 4(2)(a) represents a more restricted standard.

[28] The Court therefore turns to the Chief Justice's recommendation for an absence heuristic, which fits these requirements quite well: "no messages in this Discord (or a negligible/perfunctory message) + no activity in-game". This heuristic is adequately limited so as not to reduce Section 4(5) to irrelevance, yet is self-executing and is not null; furthermore, no credible counterproposals equally fitting the requirements have been made by any party. As such, the Court adopts this heuristic.

C. Application of the absence heuristic

[29] Our final step is to apply this heuristic, as of October 18th, to the four concerned voters: voter 1, voter 2, voter 3, and voter 4.

a) voter 1 had had no Discord or ingame activity for over 30 days; however, their absence had been condoned by the President in accordance with Section 4(4) of the Citizenship Act, and they were within the extended 44-day absence period granted thereby.

b) voter 2 had had no Discord or ingame activity for over 30 days.

c) voter 3 had had only perfunctory Discord activity and no ingame activity for over 30 days.

d) voter 4 had had no Discord or ingame activity for over 30 days.

[30] The Court applies its heuristic for absence: we find that voter 2, voter 3, and voter 4 had been absent for 30 days as of October 18th, and consequently had been automatically stripped of citizenship. voter 1 retains their citizenship.

[31] One final consideration: having found that three individuals were not valid citizens as of the election, can the Court invalidate their votes?

[32] The answer to this question is mercifully brief: Yes. The protocol for single-winner instant-runoff voting specified in Section 35 of the Constitution

states: "any person entitled to do so may cast a vote". Section 5 of the Constitution specifies that “only citizens are accorded civil suffrage”. Consequently, the three individuals found to have lacked valid citizenship as of the election were not entitled to vote, and their votes must therefore be discarded.

VI. The coordination question – Were the concerned ballots cast in an illegal manner?

[33] The Chief Justice has requested that “if the Court decides any of the four affected voters remain citizens, the second issue [that of coordination] should be decided in respect of that voter”. The Court is prepared to grant this request.

[34] This second question turns on IceCarim’s assertion that—

a) the Constitution forbids “count[ing] clearly coordinated votes from persons without a sufficient connection to present-day Cortesia”, and

b) the four concerned ballots constitute such coordinated votes.

[35] The Court’s first task, then, is to establish whether and how such claims may be adjudicated in general.

[36] Two potential bases arose during examination, both rooted in Section 11 of the Constitution: Section 11(1)’s rights for every citizen to vote in free and fair elections, and Section 11(4)’s ban on political parties.

A. Section 11(1)

[37] We consider Section 11(1) first: IceCarim submits that “expanding the constitutional population to include citizens who should not be citizens *curtails the rights* of citizens who should be citizens, because the pool of voters is larger, and correspondingly the say of active citizens becomes smaller” (emphasis in original).

[38] The Court has already decided the claim that any of the concerned individuals "should not be citizens". The ballots concerned by this section were cast by valid Cortesian citizens.

[39] Furthermore, as will be seen later in this ruling, a restriction on coordinating votes may be soundly derived from a more specific provision of the Constitution. Therefore, in accordance with the legal canon against surplusages, we find that coordination of votes cannot be considered by any test founded solely on Section 11(1).

[40] We conclude that Section 11(1) is not at play in this case. Votes validly cast by valid Cortesian citizens can never be at odds with free and fair elections. If a vote is cast by an invalid citizen, or is invalidly cast, either of these considerations pertain to different laws.

B. Section 11(4)

[41] We therefore confine our consideration of claims of vote coordination solely to Section 11(4).

[42] The Chief Justice submitted during examination that "it is not my argument that mere coordination of voting is unconstitutional or akin to a political party…it is only in a specific kind of case — with two conditions being met — that this will be the situation", referring by "two conditions" to (a) the inactivity of the voters, and (b) the coordination of the voting.

[43] By permitting the individuals concerned by this section to retain citizenship, the Court has already dispensed with the inactivity claims with regard to those individuals, at least so far as go the self-executing criteria of Section 4(2) of the Citizenship Act. Can the Court still take into account the concerned individuals' activity in assessing the illegality of vote coordination?

[44] The Chief Justice submits that "in situations where voting has been coordinated (in terms of effect) and the voters are not habitually or ordinarily resident in the Republic…the harm to the nation is the same whether the coordination was intentional or not"; in other words, that we

may take a more lax standard for finding coordination to be illegal if the voter is not habitually resident in Cortesia.

[45] The adoption of such a notion would constitute a gradation of voting rights among Cortesian citizens, as two citizens may cast votes under identical circumstances, yet one may have their vote declared illegal and one not, with the decisive factor being that citizen's activity.

[46] Despite argumentation to the contrary, we cannot help but find this to be a violation of equal suffrage, and consequently of every citizen's right to free and fair elections in terms of Section 11(1). We therefore reject the notion of a secondary activity criterion, and hold that all voters found to be sufficiently active as to be valid citizens as of time of voting must be considered equivalently.

[47] The Chief Justice's proposed test for illegal coordination was dependent on the adoption of such an activity criterion; are we therefore, in rejecting it, bound to determine that a violation of Section 11(4) is impossible? Not so.

[48] The spirit of Section 11(4)'s prohibition on political parties, as well as the guidestone of Cortesian history, implore us to take a more expansive view of what constitutes illegal vote coordination. As the Chief Justice himself writes (and the Court concurs), "the reason for that prohibition is the prevention of cliques seizing control of our nation by dominating our democratic processes"; it seems apparent that there is nothing to stop perfectly active Cortesian citizens becoming complicit in such a scheme.

[49] Additionally, such a scheme need not identify itself explicitly as a political party to run afoul of Section 11(4): motivating the Constitution's ban on political parties is their activities, not their title.

[50] One criterion is certainly imposed on such schemes by our finding in Paragraph [40], however: such a coordination scheme must be deliberate on the part of the coordinated parties. While the *identification* of a coordination scheme may take multiple votes into account, the

assessment of an *individual vote's validity or invalidity* on account of such must be made at the individual level; an individual *unaware* of their participation in coordinated voting cannot have voted in violation of Section 11(4).

[51] We therefore arrive at the following test for voting-based violations of Section 11(4): a vote is invalid in terms of that Subsection if it is deliberately coordinated in such a manner as would tend to achieve excess political control for the coordinating voters.

C. The Question

[52] We may now apply this test to the remaining concerned ballots.

[53] Our test establishes two primary criteria for a vote to be invalid in terms of Section 11(4)—

a) that the vote was coordinated in such a manner as would tend to achieve excess political control for the coordinating voters, and

b) that such coordination was deliberate on the part of the individual who cast the ballot.

[54] Answering to these criteria are two sources of evidence: the voting pattern observed by the Chief Justice, and the testimony of witness 1 (the "leader of their common group" identified by the Chief Justice in his application).

[55] The voting pattern which the Chief Justice used as his primary evidence of coordination was the receipt of three votes within 10 minutes of one another (with a fourth coming in some hours later) with the exact same set of rankings, from individuals who share a common subgroup within Cortesia Del Mar.

[56] witness 1 explains this synchrony in their private testimony thus (paraphrased from original to preserve anonymity): that the voters in question were in a voice chat with witness 1, and despite their previous lack of attention to Cortesia, became interested in the election by polling

messages sent by a private citizen; upon inquiry, witness 1 informed these individuals of their personal preference, leading the voters to simultaneously cast similar votes without witness 1's or one another's knowledge.

[57] We proceed by addressing criterion (a) first: were the votes coordinated in a way that would achieve excess political control? Most certainly:

a) Taking witness 1's testimony as true, by inducing the casting of multiple identical votes, the voice chat led by witness 1 clearly constitutes a coordination of votes; furthermore, by causing multiple voters to cast identical votes (who may have otherwise voted for different candidates, or not at all), the course of the Presidential election was significantly altered, and the result of the election could easily have been changed to favor witness 1's preferred candidate by this event given different circumstances.

b) Alternatively, if witness 1's testimony is disregarded, and the ballots assessed without context, the coordination appears even more stark, and the tendency towards excess political power achieved thereby is unchanged.

[58] The determination of the coordination question therefore rests on criterion (b): were the votes cast by the concerned individuals *deliberately* coordinated by those individuals? witness 1's recounting of events casts serious doubt on this claim; by providing an explanation of how the voting pattern observed by the Chief Justice could have come to be without any deliberate intent to coordinate, which is both plausible (though unverifiable) and consistent with the evidence, witness 1's testimony makes a decisive finding that the coordination was deliberate untenable to make.

[59] The Court consequently concludes that criterion (b) is not met, and therefore that that the test defined in Paragraph [51] is not passed. Correspondingly, the claim of illegal vote coordination in the October 2025 Presidential Election is dismissed.

VII. Conclusion

[60] Our ruling concludes that loss of citizenship in terms of Section 4(2)(a) of the Citizenship Act is indeed automatic, and sets out an informed heuristic to measure whether someone has been "absent from the Republic" in terms of that provision.

[61] Of the four individuals concerned by this application, three are found to have been sufficiently absent as of the start of the October 2025 Presidential Election as to render their citizenship invalid at that time. Their votes are consequently discarded.

[62] Our ruling additionally concludes that Section 11(4) of the Constitution prohibits coordinated voting under some circumstances. We establish a test for this purpose.

[63] We find that the ballots concerned by this application, while coordinated, do not convincingly meet the deliberateness requirement of this test, and consequently cannot be discounted on grounds of Section 11(4).

VIII. Order

[64] We issue the following order:

a) Direct access to the Supreme Court is granted.

b) We declare that loss of citizenship in accordance with Section 4(2)(a) of the Citizenship Act is automatic.

c) We find that voter 2, voter 3, and voter 4 had lost their citizenship as of October 18th, 2025; consequently, their votes in the October 2025 Presidential Election must be discarded.

d) We declare that deliberate coordinated voting, subject to the test established in Paragraph [51], is illegal in terms of Section 11(4) of the Constitution of Cortesia Del Mar.

e) We dismiss the claim that the ballots of voter 1, voter 2, voter 3, and voter 4 were illegally coordinated.

f) Deriving from the above, AlzuCats and Willow805 are elected to the offices of President and Vice President, respectively.